



POLICE DEPARTMENT

March 14, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202206429 (Incident Date: September 24, 2022) regarding Police Officer Aaron Ayala, Tax No. 946443 (DADS No. 2023-29545)

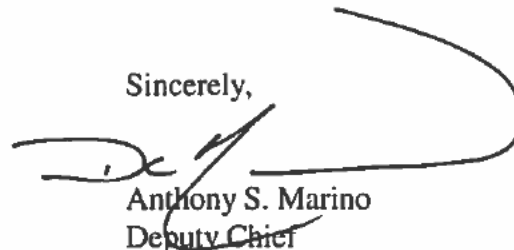
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202206429, pertaining to Police Officer Aaron Ayala. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Ayala would be detrimental to the Police Department's disciplinary process.

In this matter Police Officer Ayala, along with other community affairs officers, were on duty at an outdoor community event. At some point, Police Officer Ayala used his personal cell phone to record some of the events taking place. The video was later deleted at the request of an individual who protested Police Officer Ayala recording.

As provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Ayala for the allegation that he abused his authority when recording the individuals with his personal cell phone. However, separate and apart, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline for the violation of Department policy regarding the use of electronic/digital device while on duty.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

March 19, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202206429 (Incident Date: September 24, 2022) regarding Police Officer Aaron Ayala, Tax No. 946443 (DADS No. 2023-29545)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 14, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Ayala would be detrimental to the Police Department’s disciplinary process. Consequently, you concluded you would retain jurisdiction, and impose no disciplinary action against PO Ayala in connection with the above incident. Nevertheless, you also determined that you would separately direct the issuance of a Schedule “A” Command Discipline to PO Ayala for the violation of Department policy regarding the use of an electronic/digital device while on duty.

We disagree with your determination that PO Ayala’s conduct does not warrant the serving of Charges and Specifications. PO Ayala’s use of his phone was in violation of Departmental policy. The CCRB respectfully requests that you permit the disciplinary process against PO Ayala to continue and allow the Charges and Specifications to be served upon PO Ayala.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

March 20, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202206429 (Incident Date: September 24, 2022) regarding Police Officer Aaron Ayala, Tax No. 946443 (DADS No. 2023-29545)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 19, 2024, regarding the CCRB case involving Police Officer Aaron Ayala and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Ayala, for the reasons expressed in my March 14, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed for the allegation that he abused his authority when recording the individuals with his personal cell phone. Separate and apart, Police Officer Ayala will be issued a Schedule "A" Command Discipline for the violation of Department policy regarding the use of an electronic/digital device while on duty.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office